

Form No.HCJD/C-121
ORDER SHEET
**IN THE LAHORE HIGH COURT, MULTAN BENCH,
MULTAN.**
JUDICIAL DEPARTMENT

Civil Revision No.55-D of 2020

Dubai Islamic Bank Pakistan etc.
Versus
Mst. Saima Yasin etc.

Sr.No. of Order/ Proceeding	Date of Order/ Proceeding	Order with signatures of Judge and that of parties or counsel, where necessary.
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16.01.2020 Mr. Muhammad Suleman Bhatti, Advocate for the
petitioners.

Through this civil revision, the petitioners
have challenged the legality of judgment & decree
dated 25.09.2019 passed by the learned Civil Judge,
Multan whereby suit for declaration filed by
respondents No.1 to 3 was decreed and judgment &
decree dated 23.12.2019 passed by the learned
Additional District Judge, Multan who dismissed
the appeal of the petitioners.

2. Brief facts of the case are that predecessor-in-
interest of respondents No.1 to 3 namely
Muhammad Ishaque maintained two joint account
No.1-5-4-20620-714-130362 in Summit Bank,
Vehari Road, Near Chowk Shah Abbas, Multan and
account No.0218220002 in Dubai Islamic Bank
Branch, Vehari Road, Chowk Shah Abbas, Multan
with his real brother namely Muhammad Ikhlq /
defendant / respondent No.4. Muhammad Ishaque

died on 24.10.2015, copy of death certificate was given to the petitioners/defendants on 02.11.2015 alongwith court proceedings but despite that respondent No.4 Muhammad Ikhlaq with collusiveness of Manager of the petitioners withdrew total amount lying in the above mentioned joint accounts and deprived respondents No.1 to 3 from their inherited share $\frac{1}{2}$ of amount lying in the said joint account. Respondents No.1 to 3 / plaintiffs are entitled to get Rs.28,21,450/- as per their $\frac{1}{2}$ share in the joint account and after refusal, they filed suit. Defendants No.1 & 2 / petitioners filed contesting written statement with the prayer for dismissal of suit. On 28.11.2015, the Manager Summit Bank Multan appeared in person before the learned trial court but later on he disappeared and ex-parte proceedings were initiated against Summit Bank vide order dated 19.12.2015. That defendant No.4 Muhammad Ikhlaq also did not appeared and ex-parte proceedings were also initiated against him on 16.01.2016. On 10.05.2018, issues were framed, evidence was recorded and vide judgment & decree dated 25.09.2019, the learned trial court decreed the suit in favour of respondents No.1 to 3 / plaintiffs and declared that they are entitled to get $\frac{1}{2}$ share of the total amount deposited till 24.10.2015 in the account No.0218220002 Dubai Islamic Bank,

Branch Vehari Road, Chok Shah Abbas, Multan i.e. Rs.28,21,450/- as per their respective shares from defendant No.4. The petitioners challenged the above said judgment and decree in appeal which was also dismissed by the learned appellate court vide judgment & decree dated 23.12.2019. Hence, this civil revision.

3. Learned counsel for the petitioners submits that the impugned judgments & decrees of the learned courts below are based on misreading and non-reading of evidence, that as per Clause 16 of Standing Operating Procedure (SOP) of the Bank, it has authority in joint account for either or survivor, the bank will allow only one withdrawal transaction to the surviving joint account holder and will close the account thereafter, as such, bank has rightly released the amount to respondent No.4 these aspects have not been considered by the learned court below, as such, judgments & decrees of the learned courts below are liable to be set aside to the extent of the petitioners.

4. I have heard the arguments of the learned counsel for the petitioners and gone through the record with his able assistance.

5. Admittedly, predecessor-in-interest of respondents No.1 to 3 namely Muhammad Ishaque

and respondent No.4 Muhammad Akhlaq both were real brothers and they opened joint account No.0218220002 in Dubai Islamic Bank Branch, Vehari Road, Chowk Shah Abbas, Multan. Muhammad Ishaque died on 24.10.2015. Respondent No.4 Muhammad Ikhlaq withdrew an amount of Rs.1,00,000/- from the said joint account on 27.01.2015 and the respondent on 02.11.2015 conveyed the information regarding death of Muhammad Ishaque as well as the filing of civil proceedings through an application (Ex.P9) which was acknowledged by the petitioner bank on the same day at 11.05 a.m. The content of the said application Ex.P9 are as under: -

جناب عالی گزارش ہے کہ مسمیان محمد اسحاق محمد آفاق کا مشترکہ بینک ہذا میں کھلا ہوا ہے رقم داخل شدہ بینک اس لئے لکھا گیا تھا کہ ہر دو برادران نے اپنا حصہ کر کے رقم مشترکہ اکاؤنٹ میں جمع کرائی۔ مورخہ 8.10.2015 کو سڑک ہائی وے پر ڈھکے نہ ہونے سے ہوا۔ مورخہ 24.10.2015 کو محمد اسحاق نشتر ہسپتال میں وفات پا گیا۔ نقل سرٹیفیکیٹ مشترکہ اکاؤنٹ میں محمد اسحاق متوفی کی بیوہ مسما صائمہ یاسین بیٹا آریز اسحق اور دختر زبیرہ اسحق شامل ہیں۔ جو بینک میں قانونی اور شرعی لحاظ سے جس کے متعلق عدالتی چارہ جوئی کر دی گئی ہے اس وقت تک رقم جمع شدہ محمد اخلاق کو نہ دی جائے ورنہ تمام تر ذمہ داری بینک پر عائد ہوگی

The above application extinguished the authority of the bank under either and survivor disbursement any further but at the utter disregard of the above information/application on the very next day i.e. 03.11.2015 the petitioner bank without serving any

notice to the respondents No.1 to 3 willfully and unilaterally allowed the respondent No.4 to withdraw the total amount lying in the said joint account. It is settled law that after the death of a Muslim all the moveable or immovable assets/legacy left by the deceased automatically devolve upon all the legal heirs by operation of law and rest of the proceedings are mere formalities. When respondents No.1 to 3/plaintiffs categorically informed the petitioners regarding the death of their predecessor-in-interest and the filing of the civil suit and also prohibited the bank to make any further transaction in this regard, then it was duty of the concerned petitioner bank to disallow any further the withdrawal of the amount from the said account, whereas Branch Manager of the Bank with collusiveness of the respondent No.4 malafidely withheld the conveying of the true information to his superior as evinces from the text of e-mail and he with the malafide intention disbursed the total amount to respondent No.4 only to deprive the respondents No.1 to 3 from the share in the said amount.

6. As far as the arguments of the learned counsel for the petitioners that as per clause 16 of the SOP the bank can release the amount in joint account

through one transaction. For ready reference, clause-16 of SOP of Bank Service Agreement is reproduced as under:-

“16. Death of Account Holder.

In the event of death of an Account Holder, credit balances will only be released and / or withdrawal allowed against a valid succession certificate, letter of administration or probate from a Court of competent jurisdiction. In case of death of an Account Holder of a Joint Account with joint authority, the Bank will allow operation or withdrawal only against succession certificate, letter of administration or probate. In case the Joint Account has authority for either or survivor, the Bank will allow only one withdrawal to the surviving Joint Account Holder and will close the account thereafter. Provided, however, the Bank shall not be liable for any loss or damage and / or charges that may arise as a result of the Bank acting in relation to the Account prior to the date on which the notice of the Account Holder's death is received by the Bank in writing.”

The above clause contained three categories of the accounts holders:-

- i. Single Account Holder.
- ii. Joint Account Holder.
- iii. Joint Account with authority of either or survivor.

In the first two categories the amount lying in the account of a deceased account holder can only be released or disbursed by the bank against a valid succession certificate or letter of administration or probate from a court of competent jurisdiction. The above circumspection maintain the safeguard for the legal heirs of the account holder so that the asset/amount of the deceased account holder may not be misappropriated rather the share of each and every legal heir be delivered to its genuine lawful

owner, whereas in third category of “joint account with authority of either or survivor”, it evinces that the survivor must have clear authority in this regard whereas no document has been produced on the record that the account in question was an either and survivor account. Mere existence of a printed stipulation in account opening agreement/form that the joint account was bearing characteristic of “either and survivor” giving authority to the Bank to disburse the available amount to the survivor joint account holder, wear no sanctity in the eyes of law and it was mandatory for the bank to prove the said nature of the account and it can conveniently be said that it was mere a joint account and the joint account holder is debarred to withdraw any amount from the said account after the death of other co-account holder without adopting the due process of law. Admittedly with death of an account holder of joint account any authorization /authority given by the deceased stood automatically revoked and even a validly authorized person is denuded of such power after death of the principal as all assets of the deceased by operation of law stood vested in the ownership of legal heirs of the deceased and the Bank or the joint account holder are not empowered to unilaterally operate the account or withdraw any amount until and unless as per law a declaration of

the rendition of account is obtained and succession certificate or letter of administration or probate is issued by the court of competent jurisdiction. Moreover the modus operandi visualized in 3rd category of account holder “either or survivor” is against fundamental principles of Power of Attorney Act as well as the Mohammeden Law of inheritance on the subject and is also against Article 24 of the Constitution of the Islamic Republic of Pakistan, 1973, as such, under the SOP of “either or survivor” allowing unilateral withdrawal of the amount of the deceased are *ultra vires* the aforementioned laws. As such, the learned courts below rightly passed the impugned judgments & decrees and no illegality has been committed.

7. Learned counsel for the petitioners has not been able to point out any illegality or material irregularity in the impugned judgments & decrees passed by the learned Courts below and has also not identified any jurisdictional defect. The concurrent findings of fact are against the petitioners which do not call for any interference by this Court in exercise of its revisional jurisdiction in absence of any illegality or any other error of jurisdiction. Reliance is placed on the cases titled as Muhammad

Feroze & Others Vs. Muhammad Jamaat Ali (2006
SCMR 1304).

8. In view of above, this civil revision is
dismissed in limine being devoid of any merits with
no order as to cost.

(CH. MUHAMMAD IQBAL)
JUDGE

Shahzad Mahmood